

Court No. - 1

Case :- WRIT - C No. - 29638 of 2019

Petitioner :- Sri Krishna Chikitsalaya

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Maurya

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Gaurav Maurya, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel appearing for respondent nos.2 and 3 and learned Standing Counsel for the State. Perused the record.

By means of this petition filed under Section 226 of the Constitution of India, the petitioner has challenged the electricity bill dated 10.6.2019 which according to the respondents has been corrected pursuant to the order of this Court dated 13.12.2018 passed in the earlier writ petition filed by the petitioner raising grievance against the electricity bill.

Learned counsel for the petitioner has raised the arguments to the effect that there is no order passed by the authority in black and white while taking decisions in exercise of power under Clause 6.5 of U.P. Electricity Supply Code, 2005.

To the above argument of learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the respondent nos.2 and 3 concedes that there is no order in that regard in black and white.

In view of above, the writ petition is **disposed of** with the direction that the earlier order passed by this Court dated 13.12.2019 shall be complied with in its letter and spirit and the concerned authority shall pass a reasoned and speaking order within a period of six weeks from today and shall also supply a copy thereof to the petitioner.

In view of the order that has been passed, the bill dated 10.6.2019 annexed as Annexure No.8 shall not be pressed into service and shall be subject to final order that shall be passed as per direction issued hereinabove.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 18.9.2019

Deepika